Raj Banshi Maddeshiya@ Rajvanshi ... vs State on 7 December, 2023

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* IN THE HIGH COURT OF DELHI AT NEW DELHI

\+ BAIL APPLN. 2735/2023

RAJ BANSHI MADDESHIYA@ RAJVANSHI MADESHIYA

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versus

STATE

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CORAM:
HON'BLE MR. JUSTICE SAURABH BANERJEE

ORDER

% 07.12.2023

1. The applicant, vide the present application under Section 439 of the Code of Criminal Procedure, 1973 [CrPC], seeks regular bail in FIR No.0250/2023 dated 04.03.2023 registered under Section(s) 376/323 of the Indian Penal Code, 1860 [IPC] at PS.: Adarsh Nagar, North-West District, Delhi.

2. The present FIR under Section(s) 376/506 of the IPC came to be registered against the applicant on the statement of the complainant, wherein, she alleged that, since 2016, she used to work as a Data Entry Operator at the medicine shop of the applicant. Sometime in 2019, the applicant and the complainant entered into a consensual relationship with This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 11/12/2023 at 23:32:35 each other. The complainant has alleged that for a period of over 3 years, the applicant, under the pretext of a false promise of marriage, kept making forceful sexual relations with her. The applicant is in judicial custody since 16.03.2023.

3. Learned counsel for the applicant submits that the applicant has been falsely implicated in the present FIR; and that the relationship between the applicant and the complainant was always consensual; and that throughout the course of the relationship, the complainant, in the name of love, used to extort money from the applicant and that the present FIR came to be registered only after the relationship between the applicant and the complainant had gone sour owing to the complainant's involvement with another person namely Pankaj during the subsistence of the

relationship between the applicant and the complainant. Further, it is submitted that there was never any promise of marriage on the part of the applicant and the complainant had entered and continued with the relationship out of her own free will and in light thereof, no case under Section 376 of the IPC is made out against the applicant. In support thereof, learned counsel for the applicant places reliance upon the decision of the High Court of Bombay in Akshay Manoj Jaisinghani vs State of Maharashtra 2017 Legal Eagle (BOM) 132, wherein, it has been held that, in cases of rape, what has to be seen is whether the consent of the woman was obtained by fraud or not and in the present FIR, the applicant never obtained the consent of the complainant by fraud. He further places reliance upon the decision of the High Court of Kerala in Navaneeth N. Nath vs State of Kerala & Ors. 2022 Legal Eagle (KER) 327, wherein, it has been held that a sexual relationship between two willing adult partners This is a digitally signed order.

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4. This Court, vide order dated 18.08.2023, issued notice and called for the Status Report. Further, the latest Nominal Roll from the concerned Jail Superintendent was also requisitioned.

5. As per Nominal Roll, as on date, the applicant has been in judicial custody for a period of more than 8 months and his overall jail conduct has been 'Satisfactory'.

6. Learned APP for the State, while opposing grant of bail in the present application, submits that the offence involved in the present FIR is heinous in nature; and that on 03.03.2023, the medical examination of the complainant was conducted, wherein, she gave a detailed account of the sexual assault meted out against her by the applicant; and that the complainant, in her statement under Section 164 of the CrPC, has reiterated the allegations she had made in the FIR; and that the complainant was forced to make sexual relations with the applicant under the false pretext of marriage lastly that, if the applicant is released on bail, there is every likelihood that he might try to threaten the witnesses or tamper with the evidence.

7. This Court has heard the learned counsel for the parties and has also perused the documents on record.

8. The FIR, per se, is very clear in its contents and raises a grave This is a digitally signed order.

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It is also alleged in the FIR that, sometime in 2020, the applicant had forcefully made the complainant undergo an abortion.

9. The aforesaid factors create a doubt in the minds of this Court as the surrounding circumstances qua them are also questionable. This is more so, whence the complainant, in her statement recorded under Section 164 of the CrPC, has corroborated the allegations made by her in the FIR. Furthermore, the complainant, at the time of her medical examination, had given an elaborate description as to how she was sexually abused by the applicant.

10. Generally, the fact that the parties were in a relationship for a considerable period of time, gives rise to a presumption that they were indeed in a consensual relationship. However, it is not always so, specifically whence the position of the parties is varying and they are not at the same level, be it mentally, physically, emotionally or financially. The present is one such case wherein the parties, at this stage, cannot be said to be at the same level. More so, whence the facts herein disclose that the complainant was an 'employee' of the applicant. Even more so, whence there are specific allegations against the applicant that he used to force the complainant into sexual relations under the false pretext of marriage. Thus, based on the aforesaid, in the opinion of this Court, it would not be wrong to infer that as the applicant was always having an upper hand in his relationship with the complainant, therefore, he was not This is a digitally signed order.

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11. Under the existing circumstances, this Court is required to give sufficient weightage to the fact that the offences alleged in the present FIR are grave and heinous in nature and cannot be lightly brushed aside. Therefore, it is felt appropriate that the applicant be not granted bail at this stage as the same can lead to him tampering with the evidence and/ or influencing the witnesses.

12. Lastly, the judgments relied upon by the learned counsel for the applicant, being distinguishable on facts, are not applicable to the facts and circumstances of the present case, especially when, this Court, has observed that the relationship of the applicant with the complainant was not consensual and was instead, based upon false pretexts, especially as regards marriage.

13. In any event, for granting bail to the applicant who is involved in heinous offences, this Court has to take note of the stipulations formulated and reiterated by the Hon'ble Supreme Court in Re.: Prasanta Kumar Sarkar vs. Ashis Chatterjee (2010) 14 SCC 496; State of Uttar Pradesh vs. Amaramani Tripathi (2005) 8 SCC 21; and Deepak Yadav vs. State of Uttar Pradesh (2022) 8 SCC 559 as under:-

> a. whether there is any prima facie or reasonable ground to believe that the accused had committed the offence; b. nature and gravity of the accusation; c. severity of the punishment in the event of conviction; d. danger of the accused absconding or

fleeing, if released onbail;

e. character, behaviour, means, position and standing of theaccused;

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14. Keeping in mind the facts involved herein coupled with the legal position containing the precautions to be taken while granting bail to the applicant, the applicant has not been able to make out a case for grant of bail at this stage.

15. Accordingly, the present application is dismissed in the above terms.

16. Needless to mention, observations made, if any, on the merits of the matter are purely for the purposes of adjudicating the present application and shall not be construed as expressions on the merits of the matter.

SAURABH BANERJEE, J DECEMBER 7, 2023/akr This is a digitally signed order.

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